Palma Vista Homeowners Association, Inc.

(the "HOA")

Fifth Amended RULES AND REGULATIONS

Dated December 2, 2015

Architectural Review

PURPOSE AND AUTHORITY

NO exterior changes in color, landscaping, patios, pools, ornamentation, statuary, etc (except as otherwise noted)…is to occur on any lot or exterior of any home without the prior approval of the Palma Vista Architectural Review Board (the "ARB"). The right of this review is specifically granted by Palma Vista's governing documents and is not optional. The responsibility of architectural review is to ensure that the harmonious, high-quality image of Palma Vista is properly implemented and maintained for property values. The purpose of these guidelines is to provide guidance to Palma Vista Homeowners ("Homeowners" or "Homeowner") to ensure that we maintain an aesthetically pleasing and harmonious relationship among Palma Vista homes, landscapes, and common properties (collectively, the "Property" or "Properties"). While we recognize that our Homeowners are individuals with varying tastes, our aim is to discourage or in some cases prohibit some changes that are generally considered non-harmonious or distasteful while still allowing our Homeowners some level of aesthetic diversity. The Palma Vista Board of Directors (the "BOD") – and through them, the ARB – is interested in maintaining an ageless classic look for Palma Vista. These guidelines primarily apply to front and side yards visible to the street although non-harmonious or unsightly ornamentation that is readily visible – even if only by our immediate neighbors – may be subject to review and prohibited. Recognizing that "improvements" are subject to individual tastes, the ARB will make every effort to not let their own tastes interfere with decisions and to enforce them uniformly. The decision to approve or disapprove exterior changes is at the sole discretion of the Palma Vista ARB, which serves at the pleasure of the BOD. Upon request, one appeal of a declined ARB application may be heard by the Palma Vista BOD at the next regularly-scheduled BOD meeting, provided a written request is received no fewer than 15 days prior to that meeting. The BOD and ARB recognize that there may be instances where a variance to the ARB guidelines is warranted and may be considered for approval. Similarly, there may be cases of pre-existing conditions that the BOD and ARB agreed to allow (or grandfather), but only for those specific homes that already had them. Given this fact, it is prudent that Homeowners <u>not</u> look at other PV homes or landscapes for direction on what is currently acceptable to the BOD and ARB, but rather submit any desired changes properly to the ARB for approval prior to acting.

Failure to abide by these Rules and Regulations may be subject to the following provisions:

- Up to a $1000 fine for non-compliance with Rules and Regulations (see "Enforcement Process")
- A $250 administrative filing fee for making exterior changes prior to ARB approval (see "Changes Made Without Prior Written ARB Approval")

Note on permits: ARB approval is done based on aesthetics and congruency with the balance of Palma Vista. It is the sole responsibility of the homeowner to apply for and receive any necessary Federal, state, city, or county permits that may be required. Similarly, mere issuance of a permit by the proper issuing authority does not constitute ARB approval of such change or activity and the ARB is under no obligation to approve such request solely because a permit has been granted.

ARB MEETING FREQUENCY

The ARB shall meet as required to review ARB applications. The ARB may - at its sole discretion - take action in writing prior to an ARB meeting to approve or disapprove of applications which may clearly be approved or disapproved. Unless otherwise noted on an approved ARB application, approved work must be completed within 60 days of the approval.

ENFORCEMENT PROCESS

Homeowners whose actions and/or inactions are in violation with HOA rules, including acting without prior ARB approval, shall be notified in writing by the Association Manager (the "Manager") to correct the violation. The following process serves as the guideline for enforcement:

- Manager visits property each month to perform inspections via drive-through of the community to look for violations per the association's governing documents. When a violation is located, a photo of the violation is taken, if possible.
- When the manager returns to the office, the violation is recorded into by Sentry Management . The First Notice of Violation Letter is generated, printed and mailed to the owner and/or tenant (both registered address and property address if different). There will be a 30 day time period to comply. The First Notice of Violation Letter states the potential fine amount and/or suspension for non-compliance.
- After the 30 days, the property will be re-inspected for the violation on record. If not rectified, a Second Notice of Violation Letter will be mailed to the owner and/or tenant. This Second Notice of Violation will be sent at least 14 days prior to The Fine and Hearing Committee meeting date. This hearing notice will contain the proposed fine and/or suspension. The date, time and location will be provided. The hearing will be a meeting of the owner and the Fine and Hearing Committee members to discuss the non-compliance and the amount of the potential fine If the homeowner is in compliance when the property is re-inspected, but is a repeat offender, a Second Notice of Violation will still be generated within a 90 days of the first notice.
- The Fine & Hearing Committee meeting occurs no sooner than 14 days of mail-out of the Second Notice of Violation Letter. The Fine and Hearing Committee holds their meeting and upon approval of the fines they begin accumulating for each day of a continuing violation. The BOD is not empowered to override a decision of the Fine and Hearing Committee. A member may not simultaneously serve on both the Fine and Hearing Committee and the BOD.
- If a fine reaches the $1,000 maximum, the Board will send the owner a notice, at least 14 days prior to a special assessment meeting. The notice to the owner will state the amount of the fine and that the purpose of the meeting will be to consider a special assessment against the owner and his or her lot for the fine. This action is required to convert the fine to an assessment for collection procedures.

CHANGES MADE WITHOUT PRIOR WRITTEN ARB APPROVAL

Any changes that have been started or completed without prior ARB approval are subject to a administrative filing fee of $250 US dollars, which must be accompanied by a completed ARB application. Payment of the administrative filing fee does not guarantee approval of the external changes, which may still be denied by the ARB. Unpaid administrative filing fees shall be treated as Specific Assessments to that homeowner. ARB application requests for work that has already been started or completed and subsequently denied by the ARB must be returned to its original state at the homeowner's expense except in the event that the ARB suggests an acceptable alternative that the homeowner chooses to take at the homeowner's expense. <u>At no time shall the ARB or BOD be liable in any way for a homeowner's failure to request ARB approval prior to commencing changes or in purchasing items or services prior to ARB approval</u>. Violation of these rules shall be treated in accordance with PV's enforcement policy stated herein. Any questions regarding what requires architectural approval should be directed to the Manager during normal business hours.

ARB Criteria and neighborhood rules

ADDITIONS OR EXTENSIONS

Requests for additions or extensions to a home or garage are subject to extensive review by the ARB. No such request shall be approved unless the ARB determines that the addition or extension:

1. Is compatible and harmonious with the balance of Palma Vista,
2. Does not encroach into established setbacks in Palma Vista,
3. Does not overbuild the property in comparison to other properties (at a minimum, it must comply with the City of Orlando's impervious ratio for home sites), and is constructed in such a way that it appears as if it were built at the same time as the existing structure.

AIR CONDITIONERS

Air conditioning units must be fully screened from view from the road and neighboring properties by dense, mature shrubbery or an ARB approved wall. It is the Homeowner's responsibility to ensure that the original plantings are sufficient in size and type to maintain adequate screening. Window air conditioning units are not permitted. Professionally installed wall air conditioning units may be approved by the ARB on a case-by-case basis, which is not guaranteed.

ANIMALS/PETS

No horses, cattle, swine, goats, poultry, fowl, or any other animals not commonly considered household pets shall be kept on the properties. Under no circumstances shall any commercial or business enterprise involving the use, care or treatment of animals be conducted on the properties without the express prior written consent of the Board. No breeding for commercial or business enterprises is allowed for any animals.

All pets shall be kept on a leash that is continually under the control of the owner, or the person walking the pet, when not on the pet owner's lot or unit or on a designated area for such pets and no pet shall be allowed to roam unattended, including cats. The following rules also apply to animals and pets:

1. Pet owners must be considerate of their neighbors' right to quiet comfort if they have barking dogs that will spend time outdoors.
2. Dog houses are not permitted outside one's home except on the patio or screened pool area and only when tastefully done and maintained.
3. Runs and kennels are not permitted. Buried, electric, pet fences are permitted, but must be on the inner side of the sidewalk.
4. Pet owners that walk their pets are responsible for picking up their pets' droppings from neighbors' yards or Palma Vista common areas.
5. One sign on a fence or gate for "Beware of Dog" is permitted up to 8" by 10".
6. Rabbits or birds may be kept as household pets provided the number does not exceed three (3).

The Association will monitor verbal and written complaints concerning dogs off leash and/or dog waste nuisances within Palma Vista, including any common area, street, or other public place or upon private property or premises, other than his own lot in Palma Vista. A violation letter will be issued to the animal's owner if the violation is observed by a member or the Manager and, if not corrected, may result in a fine levied against the animal's owner for such violation by the BOD.

Written complaints received by the BOD or Manager concerning barking dogs, dog waste violations, and unleashed pets on private, public or common areas, will be issued a violation letter if the alleged nuisance has affected residents of at least two (2) or more different households in Palma Vista. A written statement must be submitted to the Manager along with the signatures of the other affected homeowners, stating the specifics (dates and times) of the alleged nuisance. In addition, the

Association may monitor the alleged nuisance and will issue a violation letter to the animal's owner if appropriate.

ANTENNA

See "Satellite Dishes".

AWNINGS

Awnings require prior approval of the ARB. Color and size must be compatible with home's exterior style, colors, and dimensions.

BOATS

Boats, personal watercraft, canoes, trailers or other craft or vehicles used for similar types of recreational purposes that cannot be stored within the confines of a closed garage must be stored offsite. Parking of these craft/vehicles in driveways, backyards, side yards, or in the street is prohibited.

Temporary parking for the purpose of loading and unloading boats will be allowed in the Homeowner's driveway not to exceed twenty-four (24) hours in a seven (7) day period for the purpose of loading before use or unloading and cleaning after use.

BUSINESS

No trade or business will be conducted or carried on within Palma Vista or in any building or other structure erected thereon, except that a Homeowner or occupant residing in a Palma Vista home may conduct business activities within their home so long as: (a) the existence or operation of the business activity is not apparent or detectable by sight, sound, or smell from outside the unit; (b) the business activity conforms to all zoning requirements for applicable governing entities; (c) the business activity does not involve persons coming into Palma Vista who do not reside in the Properties or door-to-door solicitation of residents of the Properties; and (d) the business activity is consistent with the residential character of the Properties and does not constitute a nuisance, or a hazardous or offensive use, or threaten the security or safety of other residents of the Properties, as may be determined at the sole discretion of the BOD.

The terms "business" and „trade", as used in this provision, shall be construed to have their ordinary, generally accepted meanings, and shall include, without limitation, any occupation, work or activity undertaken on an ongoing basis which involves the provision of goods or services to persons other than the provider's family and for which the provider receives a fee, compensation, or other form of consideration, regardless or whether: (a) such activity is engaged in full or part time; (b) such activity is intended to or does generate a profit; or (c) a license is required for such endeavors. The leasing of a home shall not be considered a trade or business within the meaning of this section.

Further, any regular meetings or gatherings of non-resident guests for any purpose that necessitates regularly-occurring parking in the street will be treated as if it is a business – even if such activity does not involve the provision of goods or services or require a fee, compensation, or other form of consideration to change hands. This is not intended to discourage or prohibit occasional parties, gatherings, prayer groups, support groups, etc…, but rather to prohibit Homeowners or residents from using their home as a regular place of pseudo-business, whether it is for profit or non-profit purposes, of which regular activity and increased traffic and parking may constitute a nuisance to other Homeowners and residents.

CLOTHES DRYING

Clotheslines and similar clothes drying apparatus are not permitted in Palma Vista.

COMMON PROPERTY

If your property backs up to common Association property, special care needs to be exercised. It is illegal to dump anything into, or disturb in any way the area beyond your lot line. This includes clearing, sodding, planting on, etc... No private fences, walls, landscape, or hardscape may extend into Association property.

DRAINAGE

No changes in elevation of property shall be made which will cause undue hardship to adjoining property. Homeowners may be permitted to direct under-drain drainage to the streets with prior ARB submission and approval. Approved drainage must be done by a professional or in a professional, workman-like manner and meet these guidelines: the exit hole in the curb must not exceed 3" in diameter; the end of the PVC pipe must be flush with the curb; the hole and PVC pipe must be at least 1" below the top of the curb; and the curb must be repaired and finished to conform with the adjacent curbing and with a slightly rounded edge to the hole. Homeowners with approved drainage holes are responsible for periodic curb and gutter cleaning for mildew buildup around the hole and gutter.

DRIVEWAYS, WALKWAYS, AND SIDEWALKS

Driveways and walkways may consist of standard un-stained concrete or pavers. Sidewalks must be standard un-stained concrete. While driveway aprons are constructed on easements, maintenance and upkeep of them are the responsibility of each individual Homeowner of whose Property the driveway enters. The HOA is responsible for the upkeep, maintenance, and repair of all sidewalks. All driveways, driveway aprons, walkways, and sidewalks must be maintained and kept in a neat and clean condition, free of refuse, debris, mildew, and oil stains. Excessive cracks and/or lifting from tree roots of driveways, driveway aprons, and/or walkways may require repair or replacement by the homeowner. Large oil stains must be cleaned or otherwise restored to their original condition.
Painting or staining of cement driveways, walkways, or sidewalks is not permitted under any circumstances.

The original design and widths of all walkways, sidewalks, driveways and aprons (sidewalk to street) may not be altered without prior ARB approval and no lawn or landscaped area may be paved or concreted for the purpose of vehicular parking without prior ARB approval. Requests for circular drives, where one doesn't currently exist, will be deeply scrutinized and often rejected.

Requests to change from concrete to pavers or to change from one type of pavers to a different type of pavers must be submitted for ARB approval prior to work commencing. To preserve standards that have been in practice within PV for many years, pavers in PH1 are permitted in the driveway but not over the sidewalk or in the apron area. Pavers in PH2 are required for the full driveway area all the way to the street to ensure consistency. ARB applications must include a sample when possible or at the very least the manufacturers specifications with requested color(s) shown. Typically, only earthen colors, red, charcoal, crème, or white pavers are permitted. Thin-type pavers are not permitted to be installed on top of existing driveways or walkways.

Professionally-installed natural flagstone or similar walkways may be permitted with prior ARB approval if they are harmonious with the home. On a case-by-case basis, the ARB may approve entrances and/or walkways to be covered with a highly durable and tasteful tile if it is professionally installed and finished all the way to the edges.

No walking surface may be placed in the right of way (defined as the strip of land between the sidewalk and street) for the purpose of forming a walking surface between the street and sidewalk regardless of surface type (i.e. - concrete, stepping stones, gravel, mulch, or other material for similar purposes).

FENCES AND WALLS

The composition, location, and height of fences and walls must be approved by the ARB prior to installation. Approved fences and walls must be professionally constructed and installed to a level top surface. Fences may only be black and may be constructed of a high-quality aluminum or wrought iron not to exceed 6 ft. in height and in no instance may a fence extend above the top of a privacy wall. Approved walls must be of the same color, material, and style as the home and may not encroach into the defined Palma Vista set-backs. In instances where the landscape grade is sloped, fence sections must be constructed as stepped and level rather than just follow the grade and walls must be constructed to a level top-surface. The ARB is under no obligation whatsoever to approve any fences or walls. All approved fences must be maintained to prevent deterioration. Privacy fences that restrict view are not permitted. Fences may not be installed beyond the plane of the front leading edge of the side of the house adjacent to the installation. No other fence types are permissible. Fences or walls on golf course lots must also have written approval from the MetroWest Master Association.

FLAGS

The following guidelines are for flags and may be changed from time to time to conform to applicable laws:

1. All flags must be secured to a flagpole properly mounted at 45% or 90% from vertical and may only be attached to the home or garage. The pole may only be attached to the house at one point.
2. Flags shall be no larger than 3' x 5' in size and the maximum pole length is 8'.
3. No more than two (2) flagpoles (one flag per pole) may be attached to the front of a house. No flags are allowed on the side of a house except at the entrance of a side-entry garage.
4. Yard mounted flags and flagpoles are not permitted with the exception of temporary US flags on or about recognized US memorial holidays.
5. Flags must be in good condition and not torn or faded.
6. Seasonal or holiday flags should not be displayed more than 2 weeks before or after the holiday.
7. Flags, which are offensive in nature, shall not be permitted. "Offensive" includes, but is not limited to the following categories of words, expressions or depiction's:
    a. Profanity or curse words.
    b. Vulgar or obscene expressions, graphics or depiction's
    c. Language that uses insulting terms to refer to a race, sex, orientation, nationality, religion, or handicap.

GARDENS

Vegetable gardens will be allowed in rear yards only and not visible directly from the street. The ARB may on a case-by-case basis determine that a garden is too large or unsightly for its location and reserves the right to such determination. Gardens are expected to be small enough for personal use and not for commercial purposes. Gardens in side yards will be treated on a case-by-case basis by the ARB and must be practical and unobtrusive to be considered.

GARAGE CONVERSIONS

No garage shall be converted into habitable living space within Palma Vista.

GARAGE DOORS

Garage doors are expected to be in the closed position except while in use and are not permitted to be left open due to an oversize vehicle or boat that does not comfortably fit within the confines of the closed garage door(s).

GENERATORS

Permanent, professionally installed generators are allowable upon prior ARB approval and must be completely screened by dense, mature plant material or an ARB-approved wall that shields them from view by adjacent lots and streets. Location should be determined as the least visually and/or audibly intrusive to neighbors and the street. The ARB reserves the right to request specifications on the noise levels attributed to the requested generator and may use that as criteria for approving or rejecting a generator request. Approved generators shall not be tested more than recommended by the generators' manufacturers and may only be conducted between the hours of 9:00a to 6:00p.

GUTTERS

Professionally installed aluminum gutters that are white, match the house, or match a screen room are permitted and do not require prior ARB approval. Downspout placement should be selected for the least visibility from the street. Gutters must be properly maintained and promptly repaired if damaged or visibly deteriorated.

HOLIDAY DECORATIONS

Short-term exterior decorations surrounding holidays are permitted without ARB approval, but must be removed within 3 weeks of the passing of that holiday.

HOME REPAIRS

No building or structure shall be permitted to fall into a state of disrepair. The owner of every home or structure is responsible at all times for keeping the buildings in good condition, and adequately painted or otherwise finished. In the event any building or structure is damaged, destroyed, or falls into disrepair, the owner is responsible for the immediate commencement of repairs or reconstruction to the same pre-damaged condition. Any variation from the original, undamaged condition requires prior ARB approval.

LANDSCAPING

General Landscaping Changes

All landscaping changes, whether done professionally or by the Homeowner, require prior ARB approval. General Landscaping Changes means the removal, replacing, or changing of any element of the improved exterior land surrounding the home, other than minor changes. Examples of minor changes that do not require ARB approval include: replacing annuals in a pre-existing bed, replacing a dead or declining tree or plant with the same type of plant or tree of similar size in the same location, slightly increasing or decreasing the size of a bed.

Hedges

1. Hedges that run parallel to the front of the house must remain under 24" in height if adjacent to the sidewalk.
2. Hedges that run perpendicular to the front of the house must remain under eight (8') ft. in height up to the end of the leading edge of the side of the house and must remain under six (6') from that point to the sidewalk. Such hedges must not grow to impede sidewalk traffic or interfere with line of sight.
3. Homeowners must be respectful of their side neighbors when planting hedges that run along the outer boundary of the side of their yard and form a separation between the adjoining yards. In this regard, Homeowners must plant their hedge material far enough on their own side such that upon maturity of the hedge, it will not encroach unduly on their neighbor's property.
4. Shrubs that are planted as hedge are subject to removal or modification if they do not meet guidelines.

Decorative Edging or Border

1. All types of prospective decorative edging or border require prior ARB approval of type, material, color, and location. All edging must be installed in a professional, workman-like manner, meaning a consistent and level look. An exception to ARB approval is that standard black nylon landscaping edging may be added to existing bed borders without prior ARB approval, provided it is installed in a professional manner.
    a. Decorative "continuous concrete edging" is generally allowed upon prior ARB approval of all aspects of the proposed edging.
        i. Acceptable edging styles are "curb", "mower", and "slant" with maximum dimensions of 4.5" height and 8" width.
        ii. Acceptable edging surfaces are smooth or "broom brush". Some stamped patterns may be permissible.
        iii. Acceptable edging colors are plain gray concrete, white, earthen colors, colors that match an existing roof or the house, or colors that match existing pavers.
    b. Natural fieldstone, flagstone, limestone, bricks, and other similar professional grade materials are generally acceptable.
    c. The following material is deemed not commensurate with Palma Vista home values and therefore not permitted: concrete retaining wall blocks used for borders or beds, scalloped or straight "Matt-stone" concrete, continuous post-style concrete.
2. Edging may be used to border trees or planting beds.
3. Edging may not be used solely as a separation between neighboring yards.
4. The ARB, at its sole discretion, may limit the amount of edging allowed in any single yard to prevent overuse.

Right Of Way Plantings

The ARB must approve all plantings in these areas. Annuals and ground covers are permitted to be planted in the right of way as part of beds that are planted in conjunction with approved trees, but must be maintained to a height of 24" or less. An exception is made for plantings around mailboxes, though they must be maintained in a well-manicured condition and may not cover the house numbers. Potted plants are not permitted in these areas. Also see the below section "Trees" in regards to trees planted in the right of way.

Excessive or Incongruent Landscape or Ornamentation

The ARB asserts that the goal of landscaping and ornamentation is to provide a good balance between home structures and plant material and that the plant material be maintained in a professional, and sometimes artful, manner. In some instances, Homeowners may wind up with an incongruent, overgrown, or excessive landscape in relation to their home structure by adding just a little at a time that initially goes unnoticed by the ARB. The ARB has the right to determine that a yard has so much landscape material or that it is so incongruent (no recognizable plan) that it constitutes an excessive or incongruent use of landscaping and is therefore not harmonious with the balance of Palma Vista. In this instance, the ARB or Manager will first explain to the Homeowner in writing that the Homeowner has excessive or incongruent landscaping and request that the Homeowner propose a plan to resolve the issue. If the Homeowner refuses to respond or their proposed changes are not acceptable to the ARB, the ARB will make suggestions to the Homeowner and reasonably work with the Homeowner to reach an agreement on changes; however, the ARB has final authority on what constitutes acceptable landscape and ornamentation.

Mulch, Rocks, and Similar Ground Covering Materials

Mulch or a mulch-like substitute should be used around trees, shrubs, and inside beds. Mulches must be maintained and kept clean of debris and an accumulation of leaves or grass. Faded mulch must be turned, restored, or otherwise replaced.

Mulches or natural covers that do not require prior ARB approval are: shredded or chipped cypress in natural, red or brown colors; shredded or chipped pine bark; or pine needles.

Any mulches or natural covers that are not specifically listed above shall be subject to ARB approval. The ARB reserves the right to request a sample and/or pictures prior to rendering a decision.

Maintenance of Landscaped Areas

All landscaped areas (to the street) shall be maintained in a live, healthy and growing condition, properly watered and trimmed. Any planting of grass, shrubs, or trees which become dead or badly damaged must be replaced with similar healthy plant materials.

Dead or dying trees must be replaced with a similar tree that is a minimum diameter of 2 ½ in. caliper measured 1 foot from the ground and a minimum planted height of 10 ft. Homeowners that prefer not to replace a dead or dying backyard or side yard tree may request via an ARB application that the tree not be replaced. The ARB has no obligation to grant such a request as they may determine the tree to be an integral part of the overall landscape plan. Requests to permanently remove any trees from the right of way (defined as the strip of land between the sidewalk and the street) will be denied except in such circumstances where the ARB determines that the property has enough other trees already planted in the right of way. Emergency removal of a dead, severely damaged, or fallen tree does not require prior ARB approval, but must be replaced per stated guidelines for trees.

Trees

Prior ARB approval is required before adding, removing, or relocating any trees in the Homeowner's yard. Proper attention to balance must be considered in these requests. New tree plantings should be staked long enough for their roots to support them in normal storms. Also, Homeowner's must be respectful of their neighbors when planting trees near the outer boundaries of their yard and must be mindful to plant them far enough on their own side such that upon maturity of the tree, it will not encroach unduly on their neighbor's property.

Removals will include topping and other operations necessary to safely remove the assigned tree. Work includes the removal of basal sprouts, brush and weeds within 3 ft. of the tree. The tree stump must be ground down to a depth of 6 inches below the ground level. This includes ALL surface roots. Backfill will consist of clean, earthen soil, free of debris, to normal ground level. Approved sod, mulch, or planting material may then be installed.

Generally, live oak and laurel oaks are the only allowable tree plantings in the right-of-way (aka easement) as Palma Vista was conceived and intended as a neighborhood of street-lined oak trees forming a canopy. Other tree types may be considered on a case by case basis at the sole discretion of the ARB. In regards to spacing, there must be at least one tree planted every 150 linear feet. The Board or ARB may, on a case by case basis, make exceptions to the spacing distance rule and allow a wider gap when there are other compensating factors, such as other large trees in the front yard. Although the HOA may, from time to time, trim the neighborhood's right-of-way trees as a benefit to the Membership (economies of scale), responsibility for the maintenance and health of these trees is the responsibility of each individual homeowner. In the event a tree dies, is destroyed from an act of God, or is removed by the homeowner, it is the responsibility of the homeowner to remove the old tree and replace it with a suitable tree that meets the guidelines detailed above.

Weeds and Underbrush

No weeds, underbrush, or other unsightly growths shall be permitted to grow or remain in the landscape and no refuse pile or unsightly objects shall be allowed to be placed or suffered to remain anywhere thereon. In the event a Homeowner shall fail or refuse to keep his property free of weeds, underbrush, sight obstruction, refuse piles or other unsightly growths or objects, then the BOD or Manager may contract to have the violation removed at the expense of the Homeowner, and such entry shall not be deemed a trespass; except, however, that the Homeowner shall be given ample prior notice as required by applicable city ordinance.

General Maintenance

Homeowners are expected to provide adequate fertilization, weed and insect control, as well as watering to keep their lawn and other plantings in good condition. Trees (including palms) and shrubs must be pruned on a regular basis to exhibit a neat, professional, and healthy appearance. Dead palm fronds must be removed within 30 days to maintain a groomed appearance. Dead or dying plants must be promptly removed and replaced.

It is the responsibility of each individual Homeowner to properly maintain their "right of way" trees in regards to fertilizing, pruning for shape, removal of dead limbs, and maintaining the canopy to a minimum height of 8-10 ft. above the adjacent sidewalk and street. This notwithstanding, the BOD may, from time to time at their sole discretion, hire a landscape contractor to trim the neighborhood "right of way" trees to uniformly remove dead limbs, raise the canopy, and/or remove overgrown limbs.

In the event that a tree is blown sideways, it is the responsibility of the Homeowner to reset and re-stake the tree to maintain a reasonably vertical trunk. In some cases, large, mature trees that are blown sideways are not able to be reset and staked. In this case, the ARB will determine if the tree may remain as it is (only for slightly leaning trees), or if it needs to be removed and replaced with a tree of like type.

Lawns (including front, sides, back, and right-of-way)

The only permitted grass types are St. Augustine (aka Floratam, Seville, Palmetto) and Zoyzia (aka Empire). Artificial turf is not permitted under any circumstances. Yards must be mowed, trimmed, and edged to a professional look on a regular basis. Grass must be kept neatly trimmed around all stationary objects. Edging around sidewalks, walkways, driveways, and beds must be maintained and "runners" must not overlap these areas by more than 2". After mowing, trimming, and edging, clippings must be either swept and discarded or blown into Homeowner's own yard. Clippings are not permitted to be blown or otherwise left in the street or gutters. Lawns should never reach 6" before mowing and large clumps of grass are an indication that mowing needs to be done more frequently. Large clumps of grass should be raked and removed or otherwise swept into the lawn.

If any section of a lawn is 25% or more weeds, bare ground, or dying grass, it must be restored so that such areas are less than 25%. Once the Association has sent a notice to a Homeowner to restore their lawn, the restoration must be done within sixty (60) days from the date of the letter.

Florida Friendly Landscaping

<u>DEFINITIONS</u>

A. A Guide to Florida-Friendly Landscaping Handbook. The most current version of the handbook produced by the Florida Yards and Neighborhoods of the University of Florida's IFAS Cooperative Extension Service.

B. Certified Professional. Those employees of landscaping, fertilizing, or pesticide application companies who have a current certificate of completion of training in the Florida-Friendly Best Management Practices for Protection of Water Resources by the Green Industries from the UF/IFAS

Extension Service and can demonstrate that the company's principles follows these Best Management Practices.

C. Florida-Friendly Landscaping. Quality landscapes that conserve water and protect the environment and are adaptable to local conditions and which are drought tolerant. The principles of Florida-Friendly Landscaping include planning and design, appropriate choice of plants, soil analysis, efficient irrigation, practical use of turf, appropriate use of mulches, and proper maintenance.

D. Florida Green Industries' Best Management Practices. Those practices defined in the Florida-Friendly Best Management Practices for Protection of Water Resources by the Green Industries.

DESIGN, PROPOSAL AND IMPLEMENTATION OF FLORIDA-FRIENDLY LANDSCAPING

Section 1. Duties of the ARB. The ARB shall include, but not be limited to, reviewing all environmental landscaping modifications and decisions within the development in accordance with the guidelines set forth of the most current edition of the Florida-Friendly Best Management Practices for Protection of Water Resources by the Green Industries. Environmental landscaping decisions include, but are not limited to, decisions associated with new or modifications of existing landscaping, irrigation and fertilization. If an owner desires to make an environmental design change to their property, including changes to their landscape or irrigation system, the owner shall, prior to making any change, seek approval for such design change by submitting an application to the ARB.

Section 2. Pre-Application Procedure. All owners shall, prior to submitting their application to the ARB for approval of Florida-Friendly landscaping, obtain soil analysis information from a reputable soil testing lab or the University of Florida / IFAS Cooperative Extension Facility to assess soil conditions such as soil type, texture and pH. Owners shall consult with a Certified Professional to determine the various plant and turf selections and landscaping and irrigation designs available based upon the soil type and analysis consistent with the most current version of the UF / IFAS Florida Yards and Neighborhoods Plant List.

Section 3. Plant / Turf Selection and Design. An owner's application to the ARB for approval of Florida-Friendly Landscaping shall include a survey of the Owner's Lot identifying any and all modifications. The survey must include a detailed list of all proposed plant and turf selections and designs with full identification of all proposed plants and turf selection included in the plan. The survey must also show changes to the irrigation design. The ARB shall have the authority to generate a preapproved list of Florida-Friendly landscape plantings based upon a proper soil analysis by a Certified Professional, consistent with the UF / IFAS Florida Yards and Neighborhoods Plant List. If so established by the ARB, owners shall be required to use the plantings on the ARB approved list and substitutions shall be strictly prohibited. Notwithstanding the foregoing, the ARB shall have the discretion to require the substitution of certain plants and turfs in place of those proposed by an owner, provided that the substitutions are consistent with the soil analysis and the most current version of the UF / IFAS Florida Yards and Neighborhoods Plant List. The proposed selection of design from every owner shall take into account and serve environmentally friendly functions including, but not limited to, cooling, privacy screening, reduced water use, shade, aesthetics, wildlife habitat, run off pollution prevention, and directing traffic flow onto and within the community.

Section 4. Plant Installation. All plant installations shall be conducted in accordance with the most current version of the Florida Green Industries Best Management Practices Handbook Guidelines.

Section 5. Irrigation. A primary component of Florida-Friendly Landscaping is reduced water use. Therefore, any Florida-Friendly Landscaping plan must include an irrigation design plan that reduces irrigation.

LIGHTING

No exterior lighting fixtures shall be installed on any property without adequate and proper shielding of fixtures. No lighting fixture shall be installed that may be or may become an annoyance or a nuisance to the residents of adjacent residential units. All landscape lights must be submitted for ARB approval with illustrations, specifications, and a plot plan showing proposed placement. Lighting must be of professional quality and maintained in good working order, meaning not faded, flaking, chipped, properly working and consistent intensity bulbs, erected straight, and no mixing of different incongruent types. Plastic lighting fixtures are not permitted. Do-it-yourself landscape lighting must be of a professional quality and installed in a professional manner.

MAILBOXES

No mailbox or paper box or other receptacles of any kind for use in the delivery of mail or newspapers or magazines or similar material shall be erected on any residential unit unless and until the size, location, design and type of material for said boxes or receptacles has been approved by the ARB. Palma Vista has established mailbox standards that differ slightly based on PH1 or PH2. PH1 had multiple developers/builders and thus currently has various styles of mailboxes that vary greatly. However, any mailbox that is replaced in PH1 must conform to the new standards. PH2 has a standard, consistent mailbox which will be adhered to. These standards can be found on the attached Exhibit entitled, “Exhibit A - Palma Vista Mailbox Standards”.

NUISANCE

Nothing shall be done in Palma Vista which may become an annoyance or nuisance to the neighborhood. In the event of any questions as to what may be or become a nuisance, such questions shall be submitted to the BOD for a decision in writing and its decisions shall be final.

The BOD has decided to enforce the nuisance violation in the following manner: If the Manager receives a complaint from a Resident that something is being done on the properties that is offensive to them but does not fall under a specific rule and in the Manager’s or BOD’s opinion can be classified as a nuisance, the party will be advised to submit the complaint in writing and that two (2) other Residents from two (2) other households will also need to submit in writing that this complaint is also a nuisance to them. Once the Association receives three (3) complaints in writing from three (3) separate households a violation letter will be sent to the offending party. This procedure must be repeated a total of three (3) times before being presented to the Board for review to determine whether the Association should send the matter to the Association attorney to file for an injunction.

ORNAMENTATION

All exterior ornamentation (i.e. water fountains, statues, bird baths, bird feeders, pottery, trellises, water falls, ponds, etc…) that can be seen from the street requires ARB approval prior to installation. Size, material, style, and color must be harmonious with the balance of Palma Vista. Excessive ornamentation that gives a property a cluttered look is discouraged and will be asked to be removed or arranged in a way that is harmonious with the balance of Palma Vista.

OUTDOOR STRUCTURES

Outdoor, free-standing structures such as pergolas, gazebos, permanent fireplaces or BBQ areas, or similar outdoor structures, etc…may sometimes be acceptable when designed to blend harmoniously with the home and other landscape. In some cases, the space available does not support placement of one of these structures. Any outdoor structures must have prior ARB approval to ensure that they blend properly with the home and landscape and that the space is sufficient to prevent an over-crowded look. In instances where they are approved, additional permanent landscape will generally be a necessary part of the plan and ongoing maintenance of the structure is required. Outdoor structures may not be situated in such a way that they are towering over a privacy wall and/or creating an aesthetically displeasing view for the adjacent neighbor(s).

PAINT

The BOD and ARB take paint color choices very seriously as paint choices have the ability of defining a neighborhood as well as the ability to produce a look that is incongruent with the balance of the neighborhood. Residents will be required to paint and restore the exterior of the house on a regular basis to prevent fading, chalking, mildewing, chipping, or cracking. ARB approval of the color choices is ALWAYS required prior to painting, except if repainting with the exact same color in which case prior ARB approval is not required.. The ARB application must include color samples of the requested colors as well as a current picture of the home that shows its current colors as well as the roof color. To avoid delays, the ARB application must be very specific in all details of the painting – the ARB is not responsible for delays caused by incomplete applications. In some instances, rather than outright denying a color request, the ARB may request the Homeowner to paint a 4' x 4' section of the home with the questionable color before determining if the color is compatible with Palma Vista. The ARB is under no obligation to approve any given color or color combination and may decide that a color or color combination is not appropriate for Palma Vista or not compatible with the color of the existing roof. Homes that have been painted a color that the ARB determines is not acceptable for Palma Vista, will be required to be repainted an acceptable color at the Homeowner's expense.

Painting of roof tiles and/or roof tile mortar/grout must be submitted for ARB approval in the same manner as house color change requests. In addition, the homeowner must provide a sample roof tile painted in the proposed color for approval.

PIPES AND TANKS

No water pipe, gas pipe, sewer pipe, drainage pipe or storage tank shall be installed or maintained in Palma Vista above the surface of the ground, except hoses and movable pipes used for irrigation purposes, water treatment systems, or for pools/spas. No property shall be used for the purpose of boring, mining, quarrying, exploring for or removing oil or other hydrocarbons, minerals to construct or create approved drainage structures (including lakes).

POLLUTANTS

No homeowner, resident, or guest may discharge or allow to be discharged any pollutant, hazardous waste or toxic materials on homeowner's property, common property, or neighborhood storm drains. In the event of such discharge, they shall be liable for all cleanup and cost incurred in connection therewith.

POOLS AND SPAS

All pools, spas, and related enclosures require prior ARB approval. The request must have all details of the pool construction, materials, color(s), and location. Materials, design and construction shall meet standards generally accepted by the industry and shall comply with applicable governmental regulations. All ARB applications for pools and spas must be accompanied by a screen or fence plan as well as a plat of the property with the pool plan indicated thereon. Location of the pool is restricted to the rear yard only with the following additional guidelines:

1. The outside edge of any pool wall must not be closer than 4 ft. to a line extended and aligned with the side walls of the home.
2. No screening or pool may extend beyond a line extended and aligned with the side walls of the home unless approved by the ARB.
3. Pool screening may not be visible from the street in front of the home.
4. See "Screen Enclosures" for guidelines on colors.

Access to the pool site must be obtained by using property of the homeowner installing the pool. If access is needed using property other than the homeowner's, a written permission of the other property owner must also accompany ARB application. Above-ground swimming pools are prohibited.

Any related storage tanks, chemical feeders, heating equipment, or other above-ground apparatus must be shielded within 15 days of completion of the pool by ARB-approved fencing or mature, dense shrubbery so that such equipment or apparatus is not visible from the street or side neighbors.

PRIVACY WALLS

All properties within Palma Vista (except golf properties) have a privacy wall along the rear lot boundary line (or the side lot boundary line in the case of corner lots). The homeowner of a lot containing a privacy wall is responsible for the painting, maintenance, and repair of their respective side of such privacy wall. Homeowners are encouraged to coordinate painting of the top caps with their respective backyard or side yard adjacent neighbors so that the top caps are not partially painted. The privacy wall may only be painted standard colors for Palma Vista privacy walls which are as follows:

Base color
Sherwin Williams "Mannered Gold" 6130
Top cap color
Sherwin Williams "Blonde" 6128

Any other neutral color or repainting to the current color requires prior ARB approval.

For more detailed information regarding Privacy Walls, refer to Article XI of the "Declaration of Protective Covenants and Restrictions for Palma Vista".

PROPANE TANKS

Buried propane tanks are preferable. In instances where burying is not practical, propane tanks may be surface installed right next to the side or back of the house, but must be completely screened by dense, mature plant material or an ARB-approved wall that shields them from view by adjacent lots and streets. Location should be determined as the least visually intrusive to neighbors and the street.

RECREATION EQUIPMENT

General

Except as specifically permitted below, recreational equipment, including basketball goals, toy basketball goals, skate board ramps, etc., shall not be stored in front, side, or driveways, nor shall recreation equipment be attached to houses or garages in Palma Vista. Recreation equipment must be stored away when not in active use and is not to be left outside overnight under any circumstances. Tree houses are prohibited.

Specific

1. Portable basketball goals ("PBGs") or permanent basketball goals with prior ARB approval are permitted, but will be held to a high standard of maintenance upkeep to maintain streetscape aesthetics. It is recommended, but not required, that PBGs be stored away when not in use. Should the homeowner choose to store their PBG, acceptable areas of storage are in the homeowner's garage or behind the homeowner's home not visible from the street. PBGs may be used only in the homeowner's driveway behind the plane of the front of the house; or in instances where there is no driveway behind the plane of the front of the house, they may be used in the driveway in front of the house. Under no circumstances are portable basketball goals or the playing thereof to occur in the streets. Since quality portable basketball goals are designed with bases that can be filled with water or sand for stability, the use of concrete, wood, or other external weighting methods should not be necessary and is not permitted. This provision does not apply to small toy basketball goals, which should be stored when not in active use.

2. Permanent basketball courts located in the back yard or a side yard may be permitted subject to prior ARB approval
3. Child play sets or large toys are generally permitted in back yards, with prior ARB approval, and must be installed behind the plane of the back of the house nearest the planned location.
4. Skate board ramps are not permitted on the streets or sidewalks at any time.
5. One relatively small playhouse is allowed in the rear of house and within established setbacks, subject to ARB approval. The playhouse should be harmonious with the home and landscaping should be included with the plan to help shield and soften the look.
6. Small, plastic baby pools are permitted provided that they are stored out of site from neighboring homes and the street after each use.
7. Relatively small camping tents that are used for occasional overnight sleeping by children solely for recreational purposes are permitted for up to 48 hours.

RENTAL RESTRICTIONS

The renting of houses for less than twelve (12) months is prohibited. Rentals may only be to one single family. Subletting is not permitted. Palma Vista's policy requires owners to provide a copy of the lease agreement with the proposed tenant to the Manager and provide a current copy of the PV Rules & Regulations to the tenant. By accepting tenancy, lessees are bound by all Palma Vista Rules & Regulations and the Homeowner is responsible for any tenant violations of these Rules and Regulations.

ROOFS

Homeowners must keep their roofs free of mildew. The HOA will treat the situation as a violation if 25% or more of a roof surface is discolored. Roofs must be uniform in color. If replacement tiles do not reasonably match the existing tiles, the entire area visible from the street or adjacent properties may require replacement at the sole discretion of the ARB. Additionally, tile grout that is severely faded or is in visible disrepair may require painting and/or repair. ARB applications for roof tile replacement must include a sample and the manufacturer with requested color shown

SATELLITE DISHES (and Antenna)

Any homeowner desiring to receive either Direct Broadcast Satellites (DBS), Direct Satellite System (DSS), Multichannel Multipoint Distribution (wireless cable) providers (MMDS) and Television Broadcast Stations (TVBS) are restricted to the placement of a satellite dish no more than one (1) meter in diameter, installed as near to the home as reasonably feasible. The dish shall be reasonably screened from view by the surrounding properties. All other types of antenna or satellite dish installation, including but not limited to HAM radios and dishes in excess of one meter in diameter, are prohibited except for those reception devices that are exempt (protected) from Association restriction pursuant to Federal law or regulations. Regardless of the aforementioned, the installation method and placement location of any satellite dish or non-prohibited antenna must be approved by the ARB prior to installation.

SCREEN ENCLOSURES

All pool screen enclosures require prior ARB approval and must be a black, dark brown (bronze) or white anodized aluminum with charcoal screening.

SHUTTERS

No hurricane shutters shall be installed without prior ARB approval. Approved hurricane shutters and/or temporary protective covering shall be allowed only after a hurricane or tornado warning has been issued by the U.S. Weather Service. Approved permanent hurricane shutters must be opened and protective covering (including taped windows) removed within forty-eight (48) hours after the hurricane or tornado warning has ended.

SIGNS

No signs (including political signs of any kind) are permitted in Palma Vista except as expressly provided herein. One standard, designated "For Sale" sign is allowed per lot. The standard, designated "For Sale" sign may only be purchased from Palma Vista's "Authorized Standard Sign Supplier" (see below for details) so that the standard may be preserved. No other non-standard "For Sale" sign shall be allowed. Another exception is that one sign displaying "Beware of Dog" is permitted up to 8" by 10" and must be accompanied by a bona fide dog. All allowed signs must be kept in excellent condition. One clear, standardized information box may be attached to the front of the "For Sale" sign post. To ensure the standard is followed, the standardized information box must be ordered from the "Authorized Standard Sign Supplier".

Palma Vista's Rules for installing the signs are as follows: installed height is 36" from ground to bottom of the sign; location is approx. 6 ft into the property measured from the inside edge of the sidewalk and somewhat centered (side to side) in the front yard; orientation is that the sign should be squarely facing the street. The BOD and ARB recognize that there may be instances where yard landscaping dictates a slightly different location, but ground to installed bottom of the sign should always be 36" for consistency. A standard, designated "For Sale" sign may only be purchased from Palma Vista's Authorized Standard Sign Supplier:

Express Signs Orlando – phone (407) 347-9270; fax (407) 614-2838.

Fines for prohibited signs may be imposed beginning one day after delivery of notice of the violation, but shall otherwise follow the process described in the section titled "Enforcement Process".

SOLAR EQUIPMENT

Solar water heater or solar electric equipment requires ARB approval prior to installation and must be designed and constructed to appear as an integrated part of the building architecture. This shall generally mean that the panels shall be roof mounted so that the top surface is flush with the roof surface. While the ARB recognizes that such installation may not be optimal, placement shall be restricted to the rear side of the home unless the ARB grants a specific variance. In no instance may they be installed on a front-facing portion of the house.

SOLICITATION

Palma Vista is a "NO Soliciting" neighborhood.

STORAGE SHEDS

Storage sheds are not permitted.

STORM/HURRICANE PREPAREDNESS (see SHUTTERS)

TIME SHARE

No Residential Property shall be owned or used in multiple or time share ownership requiring registration pursuant to the provisions of the Florida Statutes, as amended from time to time.

TRASH, GARBAGE & RECYCLING

No lumber, metals, bulk materials, refuse or trash shall be kept, stored, or allowed to accumulate on the Homeowner's property except building materials during the course of construction of an approved project. At all other times, such trash and/or containers, and bins shall be stored so that they cannot be seen from the street. Trash, garbage and recycling containers as well as landscape debris may be placed by the curb only up to 12 hours before the regularly scheduled pickup. Recycling containers must be removed from view by dawn of the day following the collection. If the regularly scheduled pickup date is canceled due to a holiday, then trash and containers must be removed from the curb until 12 hours prior to the next regularly scheduled pickup date.

TRELLISES

All trellises that will be attached, next to, or leaning on the house must have prior ARB approval. The ARB will review the construction material of the trellis to ensure that it is durable. Any approved trellis must be kept in good condition or must be removed. In any case, it is expected that the trellis will be used to support plant material and not just act as a decorative feature so if the related plant dies or severely declines, the plant material must be replaced or else the related trellis must be removed.

VEHICLES

Prohibited Vehicles

No "Prohibited Vehicle" shall be parked or stored on common property or on any part of Homeowner's property whether visible from the street or any adjacent homes, except in the case of an otherwise prohibited vehicle that is parked or stored within the confines of a closed garage. The HOA has the right to tow a prohibited vehicle that remains in violation for 48 consecutive hours or 96 non-consecutive hours in a 7 day period (For more detailed information regarding towing, refer to Article XII, Section 16 of the "Declaration of Protective Covenants and Restrictions for Palma Vista"). For purposes of this section, a "Prohibited Vehicle" is:

(1) Any vehicle longer than twenty (21) feet or higher than eight (8) feet.

(2) Any commercial vehicle, i.e., one not designed and used for normal personal/family transportation.

(3) Any vehicle bearing commercial lettering, graphics, or other Commercial insignia, except if such lettering is completely covered with magnetic material (or other type coverings intended for outdoor use). The material must be the same color as the vehicle. Exceptions: Factory applied logos depicting the name of the vehicle or logos of non-profit car clubs, and college and University names and logos. The ARB or BOD may make other exceptions from time-to-time and apply them uniformly to all Members.

(4) Recreational vehicles (RV), including campers, mobile and motor homes, all-terrain vehicles and dune buggies.

(5) Trailer of any type.

(6) Boats, covered or uncovered.

(7) Derelict vehicles, including vehicles with no current license plate (tag has expired) or vehicles incapable of self-propulsion.

For purposes of this Section, a "Prohibited Vehicle" shall not be deemed to be (even if generally described above) any commercial or public service vehicle present in the Properties while performing services for or on behalf of BOD or a Homeowner.

Non-street Legal Vehicles

All non-street legal motorized vehicles, including ATV's, , go-carts, , and similar vehicles are prohibited from use on Palma Vista streets, sidewalks, or Common Property. Similarly, street- legal vehicles are not allowed to be operated in an off-road way on non-street Common Property such as the retention pond areas. An exception is made for motorized service vehicles used by the Board, Management, or vendors in an official capacity in serving or servicing the HOA.

Recreational Vehicles, Trailers, and Campers.

Temporary parking for the purpose of loading and unloading recreational vehicles, trailers, campers, or similar vehicles or items will be allowed in the Homeowner's driveway for up to three (3) hours for the purpose of loading before use or unloading and cleaning after use.

Allowable Resident Parking

Residents may park in their driveway or garage.

Street Parking

Residents may not park in the street. Guests of our residents are permitted to park in the street for short periods of visitation, but under no circumstances are they to park in the street overnight. In instances where a guest visits so frequently that the same car is repeatedly observed at that home, then for all intents and purposes this guest is considered a part-time resident in which parking in the street is prohibited. While PV HOA usually makes every attempt to solve parking violations via reminder letters to our homeowners, it is fully within our right to have vehicles in violation of these rules towed at the owners' expense.

Prohibited Parking

No vehicle, whether a "Prohibited Vehicle" or otherwise, shall be parked on any lawn, aprons (sidewalk to street), landscaped portion of common properties which is not specifically designed and intended for the parking of vehicles.

Vehicle Repair

No disassembly or repair of motor vehicles shall be made in any roadway, driveway, or parking area, including oil changes, except in the case of an emergency breakdown.

WALLS

See Fences and Walls.

WATER CONDITIONERS

Water conditioners may be installed in the backyard (or a side yard) next to the house and must be completely shielded from view by dense, mature shrubbery. Water conditioners do not need prior ARB approval provided they meet these guidelines.

WATER HOSES AND WATER HOSE HOLDERS

These must be stored neatly when not in use.

WINDOW COVERINGS

All interior window coverings must be maintained in a good state of repair. Interior window coverings must be manufactured vertical or horizontal blinds, curtains, shutters, or shades that fit the dimensions of the window and properly mounted. No drawings, pictures, lettering, flags, signs, etc…may be attached or visible in any part of the window other than house security signs. Small garage door windows do not need to be covered, but if they are, the coverings must be maintained in a good state of repair. "Burglar bars", steel, or wrought iron bars or similar fixtures are not permitted on the exterior of any windows or doors.

WINDOW TINT

Solar tinting requires prior ARB approval and must be non-reflective and visible light reflected must be 20% or less. Acceptable colors are smoke, gray, or bronze.

WINDOW TYPE

Casement windows (a window which has a side hinged sash that opens on a vertical plane and typically opened by use of a hand crank on the inside base of the unit) are not permitted.

WOOD PILES (FIREWOOD)

Firewood piles must be clean and neat and are restricted to the backyard or otherwise not visible from the street in a side yard location.

Exhibit A - Palma Vista Mailbox Standards

Each individual homeowner is responsible for keeping their mailbox in proper aesthetic and working order. Palma Vista (PV) has standards in place for mailboxes. Replacing a mailbox – even when using the appropriate standard mailboxes below – requires submission and approval of an ARB application form prior to making the change. ARB applications are available from our Association Manager.

PV mailbox standards were put in place by the developers – the purpose of which is to help maintain a consistent and harmonious streetscape which is believed to help maintain property values. At one period of time during the progression of PV through various developer/builders, these standards were not adhered to and the developer/builder approved a wide variety of mailboxes. The mailboxes at those homes are "grandfathered" and need not be replaced with a standard mailbox. However, in cases where those mailboxes need to be replaced for any reason, they must be replaced with a standard mailbox.

Since PV was developed over time, Phase I and Phase II were given different standards as shown below. There is only one supplier of the standard mailboxes and neither the BOD nor the HOA have any financial stake or interest in this vendor or the sales:

Vendor: *Creative Mailbox & Sign Designs* http://www.creativemailboxdesigns.com/contact-us/central-florida-custom-mailboxes.aspx	6422 Harney Road, Suite F Tampa, FL 33610 Phone: (813) 818-7100, Option 3 Toll Free: (855) 253-6245 Fax: (813) 330-3309	Orlando Warehouse: 1355 Bennett Drive, Unit 203 Longwood, FL 33610

Phase I – Estate Collection, Model ME-1	**Phase II – Estate Collection, Model ME**
Colors: Mailbox, Post, and Base are high-gloss black Flag is Stamped Red Costs: * Vinyl numbers are Gold (2" tall) Mailbox: $175.00 Flag and Flag Kit $30.00 Mounting Cup: $ 55.00 Post: $ 95.00 Base $30.00 Vinyl numbers: $ 25.00 (2 sets mailed) Installation: $125.00	Colors: Mailbox, Post, and Base are high-gloss black Flag is Stamped Red Costs: * Vinyl numbers are Gold (2" tall) Mailbox: $175.00 Flag and Flag Kit $ 30.00 Mounting Cup: $ 55.00 Post: $ 95.00 Vinyl numbers: $ 25.00 (2 sets mailed) Installation: $125.00

** Costs are accurate as of 7/19, but subject to change without notice. Please confirm with vendor.*

Understand that these standards are not put in place as a way to limit self-expression, but rather as a way to protect and enhance Palma Vista and our collective property values. Any mailbox that is installed which does not comply with these standards (or does not have a prior written exception approval from the ARB, which will not be given lightly) must be replaced at the owner's expense. Thank you in advance for your cooperation.

Phase I – Model ME-1



Phase II – Model ME

